SOFTWARE AS A SERVICE AGREEMENT

This Software as a Service Agreement (the "**Agreement**") is entered into with effect from December 9, 2025 (the "**Effective Date**") between **BookWave Distribution Inc** ("**BookWave**" or the "**Supplier**") and **Seabright Hotels & Resorts Inc**, a hotel group that owns and operates six hotels (the "**Customer**"). The Services are delivered for use at the Customer's individual hotels (each a "**Property**" and together the "**Properties**").

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement: "**BookWave Channel**" means the online distribution, booking and reservation platform operated by BookWave through which room bookings for the Properties are made; "**Booking**" means a room reservation made through the BookWave Channel; "**Customer Personal Data**" means personal data relating to the Customer's customers and employees that is processed by BookWave in connection with the Services; "**Fees**" means the fees stated in Clause 4; "**Services**" means the hosted software, platform access, distribution and related support services described in this Agreement, as made available by BookWave from time to time; and "**Term**" means the Initial Term and any Renewal Term.

1.2 Headings are for convenience only and do not affect interpretation. "Including" means "including without limitation".

2. SERVICES AND SCOPE

2.1 BookWave grants the Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Services at the Properties for the Customer's internal business purposes, subject to this Agreement.

2.2 BookWave may modify, update, suspend or discontinue any feature of the Services, provided that it does not materially reduce the core functionality of the Services during the then-current term.

2.3 The Customer shall: (a) provide accurate rates, inventory, availability and Property information; (b) keep its credentials secure and be responsible for all activity under its accounts; (c) ensure its use of the Services complies with applicable law; and (d) not reverse engineer, copy, resell or interfere with the Services or use them to build a competing product.

2.4 BookWave may suspend access to the Services where reasonably necessary to protect the security or integrity of the Services, where the Customer is in breach of this Agreement, or for scheduled or emergency maintenance. Suspension does not relieve the Customer of its payment obligations.

3. TERM AND RENEWAL

3.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until December 9, 2026 (the "**Initial Term**"), being a period of twelve (12) months.

3.2 At the end of the Initial Term and each Renewal Term, this Agreement renews automatically for a successive period of twelve (12) months (each a "**Renewal Term**") unless either party gives the other at least sixty (60) days' written notice of non-renewal before the end of the then-current term.

3.3 Neither party may terminate this Agreement for convenience. This Agreement may be terminated only in accordance with Clause 14.

4. FEES, COMMISSION AND PAYMENT

4.1 The Customer shall pay BookWave annual fees of USD 420,000 for the Initial Term. The total contract value of this Agreement for the Initial Term is USD 420,000.

4.2 In addition, the Customer shall pay BookWave a commission of fifteen percent (15%) of the room revenue of each Booking made through the BookWave Channel. Commission is calculated and invoiced by BookWave on the basis of its booking records, which shall be conclusive absent manifest error.

4.3 BookWave shall invoice the Fees and commission. Undisputed invoices are payable within thirty (30) days of receipt of a valid invoice. The Customer shall notify BookWave in writing of any good-faith dispute, with reasonable supporting detail, before the due date, and shall pay the undisputed portion on time.

4.4 Overdue amounts accrue interest at the maximum rate permitted by law from the due date until payment in full. BookWave may suspend the Services on written notice where undisputed amounts remain unpaid after the due date.

4.5 All amounts are exclusive of taxes, levies and duties, which the Customer shall bear (other than taxes on BookWave's net income). Fees are non-refundable except as expressly stated in this Agreement. Fees for any Renewal Term shall be those notified by BookWave in writing before the end of the then-current term, failing which the Fees then in effect continue to apply.

5. SERVICE LEVELS

5.1 BookWave shall use commercially reasonable efforts to make the Services available at least 99.0% of the time in each calendar month, measured by BookWave's monitoring systems.

5.2 Availability excludes downtime arising from: scheduled or emergency maintenance; the Customer's or any Property's systems, networks or acts or omissions; third-party services, hosting providers, payment processors, channel partners or internet failures; suspension in accordance with this Agreement; and force majeure events.

5.3 BookWave shall notify the Customer of a security incident affecting Customer Personal Data within ninety-six (96) hours after BookWave confirms the incident.

5.4 The remedies in this Clause 5 and Clause 14, and any service credits BookWave may elect to grant, are the Customer's sole and exclusive remedy for any failure to meet the service levels.

6. DATA PROTECTION

6.1 The Services involve the processing of personal data of the Customer's customers and employees. BookWave receives guest names, contact details and payment references for each Booking and may use them to provide the Services, process and fulfill Bookings, calculate commission, prevent fraud, and comply with law.

6.2 The Customer is responsible for the accuracy and lawfulness of Customer Personal Data supplied to BookWave and warrants that it has all notices, consents and legal bases necessary for BookWave to process it as contemplated by this Agreement.

6.3 BookWave shall maintain administrative, technical and organizational measures that it considers appropriate to protect Customer Personal Data against unauthorised access, loss or disclosure, and may engage subcontractors and affiliates for the Services.

6.4 Each party shall comply with data protection laws applicable to it. The Customer acknowledges that BookWave may retain and use Customer Personal Data to the extent required for legal, accounting, audit, dispute-resolution and fraud-prevention purposes.

7. CONFIDENTIALITY

7.1 "**Confidential Information**" means non-public information disclosed by a party in connection with this Agreement that is marked confidential or would reasonably be understood to be confidential, including pricing, rates, business plans and the non-public features of the Services. It excludes information that is or becomes public through no fault of the recipient, was lawfully known to or independently developed by the recipient, or is lawfully received from a third party without restriction.

7.2 The recipient shall use Confidential Information solely to perform or exercise rights under this Agreement, protect it with reasonable care, and disclose it only to personnel, advisers and subcontractors who need to know it and are bound by confidentiality obligations, or as required by law (with prompt notice where lawful).

7.3 The obligations in this Clause 7 survive for two (2) years after this Agreement ends.

8. INTELLECTUAL PROPERTY

8.1 BookWave and its licensors retain all right, title and interest in the Services, the BookWave Channel, and all software, documentation, data models, improvements and derivative works, and all related intellectual property rights. No rights are granted except as expressly stated.

8.2 The Customer retains ownership of its pre-existing content, trademarks, rates and Property descriptions ("**Customer Content**") and grants BookWave a non-exclusive, worldwide license during the Term to host, display, distribute and use Customer Content to provide, market and promote the Services and the Properties through the BookWave Channel.

8.3 BookWave may use aggregated and de-identified data derived from the use of the Services for analytics, benchmarking and product improvement. Any feedback provided by the Customer may be used by BookWave without restriction or obligation.

9. WARRANTIES

9.1 BookWave warrants that it will provide the Services with reasonable skill and care. No express warranty period applies, and this is the only warranty given in respect of the Services.

9.2 Each party warrants that it has the authority to enter into this Agreement.

9.3 TO THE FULLEST EXTENT PERMITTED BY LAW, ALL OTHER WARRANTIES, CONDITIONS AND TERMS, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, ARE EXCLUDED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT. BOOKWAVE DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR SECURE, THAT ANY DEFECT WILL BE CORRECTED, OR THAT ANY NUMBER OR VALUE OF BOOKINGS WILL BE GENERATED.

10. INDEMNITY

10.1 The Customer shall defend, indemnify and hold harmless BookWave and its affiliates, officers and personnel from all claims, losses, liabilities, damages, costs and expenses (including reasonable legal fees) arising from: (a) Customer Content or Customer Personal Data supplied by the Customer; (b) the Customer's breach of Clauses 2.3 or 6.2; (c) any Property's services, facilities, rates, cancellations, overbookings, guest injury or guest complaints; or (d) the Customer's breach of applicable law.

10.2 BookWave shall defend the Customer against a third-party claim alleging that the Services, as provided by BookWave, infringe that third party's intellectual property rights, and pay damages finally awarded or settlements agreed by BookWave, provided that the Customer promptly notifies BookWave, gives it sole control of the defense and cooperates. BookWave has no liability to the extent a claim arises from Customer Content, modifications, combinations with other products, or use contrary to this Agreement. If a claim arises, BookWave may procure the right to continue use, modify the Services, or terminate the affected Services. This Clause 10.2 states BookWave's entire liability for infringement claims.

11. LIMITATION OF LIABILITY

11.1 SUBJECT TO CLAUSE 11.4, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF STATUTORY DUTY OR OTHERWISE, IS LIMITED TO 0.5 TIMES THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

11.2 TO THE FULLEST EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE LOSS OR DAMAGE, OR FOR ANY LOSS OF PROFIT, REVENUE, BOOKINGS, BUSINESS, GOODWILL, ANTICIPATED SAVINGS OR DATA, OR COSTS OF PROCUREMENT OF SUBSTITUTE SERVICES, HOWEVER ARISING AND EVEN IF ADVISED OF THEIR POSSIBILITY.

11.3 BookWave is not liable for any loss arising from third-party systems, channel partners, payment processors or internet failures, unauthorised access resulting from the Customer's

failure to safeguard credentials, or any act or omission of a Property or guest. The Customer's payment obligations are not subject to the limits in this Clause 11.

11.4 Nothing in this Agreement limits liability that cannot lawfully be limited, including for fraud or for death or personal injury caused by negligence.

12. FORCE MAJEURE

Neither party is liable for delay or failure in performance (other than payment) caused by events beyond its reasonable control, including natural disaster, epidemic, war, terrorism, governmental action, labor disputes, utility, telecommunications or hosting failures, or cyber-attack not caused by its negligence.

13. INSURANCE AND COMPLIANCE

Each party shall maintain insurance appropriate to its business and shall comply with laws applicable to its performance of this Agreement, including anti-bribery and sanctions laws.

14. TERMINATION

14.1 Either party may terminate this Agreement for cause by written notice if the other party: (a) commits a material breach that is not remedied within thirty (30) days of written notice specifying the breach; or (b) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy or similar proceedings. Termination for convenience is not permitted for either party.

14.2 On expiry or termination: (a) the Customer's right to use the Services ends; (b) all unpaid Fees and commission, including on Bookings made before termination for stays occurring after termination, become or remain payable; (c) each party shall return or delete the other's Confidential Information, save for copies retained under law or routine back-up; and (d) accrued rights are unaffected. Clauses 4, 6.4, 7, 8, 9.3, 10, 11, 14.2, 16 and 17 survive.

15. ASSIGNMENT AND SUBCONTRACTING

The Customer may not assign, novate or transfer this Agreement without BookWave's prior written consent. BookWave may assign this Agreement to an affiliate or a successor to its business, and may subcontract any of its obligations, without consent.

16. GOVERNING LAW AND DISPUTES

This Agreement and any dispute arising out of or in connection with it are governed by the laws of Nevada, without regard to conflict-of-law principles. The courts located in Nevada have exclusive jurisdiction, and each party submits to them.

17. NOTICES AND GENERAL

17.1 Notices must be in writing and delivered by hand, courier or email to the address most recently notified by the receiving party, and are deemed received on delivery (or, for email, on transmission absent a delivery failure message).

17.2 This Agreement is the entire agreement between the parties regarding its subject matter and supersedes all prior discussions, proposals and representations. The Customer acknowledges it has not relied on any statement not set out in this Agreement. Any variation must be in writing and signed by both parties. BookWave's terms of use for the BookWave Channel apply only to the extent not inconsistent with this Agreement.

17.3 If any provision is held unenforceable, the remainder continues in effect. A failure to enforce a right is not a waiver. Nothing creates a partnership, agency or employment relationship. No third party has any right to enforce this Agreement. This Agreement may be executed in counterparts and by electronic signature.

18. SIGNATURES

	For the Customer	For the Supplier
Party	Seabright Hotels & Resorts Inc	BookWave Distribution Inc
Name	Helena Cruz	Anika Rao
Title	VP Technology Sourcing	Authorized Signatory
Signature		
Date	November 29, 2025	December 2, 2025